

24SMCV06079 24SMCV06079

County: los-angeles

Division: Civil Law and Motion

Department: 207

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

21, 2026

CASE NUMBER

24SMCV06079

MOTION

Motion

for Summary Judgment

MOVING PARTIES

Defendants and Cross-Complainants Equinox

Fitness Westwood, Inc.; Equinox Fitness Westwood Office, Inc.; and Equinox Holdings, Inc.

OPPOSING PARTY

Plaintiff

Farshad Lavian

MOVING PAPERS:

Notice

of Motion and Motion for Summary Judgment; Memorandum of Points and
Authorities

Separate

Statement of Undisputed Material Facts

Compendium

of Evidence

Declaration

of Michael Kinkead

Declaration

of Michael Izzo

Declaration

of Charles S. Russell

OPPOSITION PAPERS:

Opposition to Motion for Summary

Judgment; Memorandum of Points and Authorities

Response to Separate Statement

Evidentiary Objections

Compendium of Evidence

Declaration of Farshad Lavian

Declaration of P. David Cienfuegos

REPLY PAPERS:

Reply

to Plaintiff's Opposition to Motion for Summary Judgment

Objections

to Plaintiff's Evidence

BACKGROUND

This case arises from allegations that Plaintiff was injured when trying to dismount a defective stationary bicycle on Defendants' premises. On December 13, 2024, Plaintiff Farshad Lavian ("Plaintiff") filed suit against Defendants Equinox Fitness Westwood, Inc.; Equinox Fitness Westwood Office, Inc.; and Equinox Holdings, Inc. ("Defendants") alleging two causes of action for premises liability and general negligence.

Defendants cross-complained against Plaintiff. The operative First Amended Cross-Complaint ("FAXC") alleges a single cause of action for breach of contract, alleging Plaintiff signed a general release, settling his claims with Defendants on June 21, 2023 in exchange for three months of complimentary gym membership, yet subsequently brought the instant action.

Defendants now move for summary judgment. Plaintiff opposes the motion and Defendants reply.

EVIDENTIARY

OBJECTIONS

The Court rules as follows with respect to Plaintiff's evidentiary objections:

1.

Overruled

2.

Overruled

3.

Overruled

The Court rules as follows with respect to Defendants' evidentiary objections:

1.

Sustained

2.

Sustained

3.

Sustained

4.

Sustained

5.

Sustained

6.

Sustained

7.

Sustained

8.

Sustained

The remainder of Defendants' "objections" are responses to Plaintiff's Separate Statement, as opposed to true evidentiary objections. As such, the Court will not issue rulings on them.

LEGAL STANDARDS – MOTION FOR SUMMARY JUDGMENT

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.]
There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the

party opposing the motion in accordance with the applicable standard of proof.”

¿(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850

(hereafter Aguilar).) ¿ “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” ¿(Ibid.)

Further, “the trial court

may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the

trial court grant summary judgment based on the court’s evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840

[cleaned up]; see also Weiss v. People ex rel. Department of Transportation

(2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

DISCUSSION

The crux of Defendants’ motion is

that Plaintiff’s claims are barred by virtue of the General Release agreement

and there are no triable issues of material fact that Defendants will prevail

on their breach of contract cause of action premised on the same agreement.

1. BREACH OF CONTRACT

“To prevail on a cause of

action for breach of contract, the plaintiff must prove (1) the contract, (2)

the plaintiff’s performance of the contract or excuse for nonperformance, (3)

the defendant’s breach, and (4) the resulting damage to the plaintiff.” (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

a. Defendants’ Evidence

Defendants advance the

following evidence in support of the motion:

· While at Equinox on May 19, 2023, Plaintiff

was involved in an incident involving an exercise bike. (UMF No. 3.)

· During Plaintiff's subsequent discussions with Equinox Regional Manager, Michael Izzo, Plaintiff was offered three complimentary months of gym membership in exchange for a release of Plaintiff's claims in connection with the exercise bike incident. (UMF Nos. 7-8.)

· Plaintiff had the draft release agreement for approximately one week before he signed it on June 21, 2023. (UMF No. 9.)

· The agreement provided that Defendants would provide three months of complimentary gym membership to Plaintiff and in exchange, Plaintiff would release all claims against Equinox and would not initiate any legal proceeding against Defendants for anything that occurred prior to June 21, 2023. (UMF Nos. 10-11.)

· On or about June 29, 2023, Equinox refunded \$268 to Plaintiff, constituting the first complimentary month of membership for July 2023. (UMF No. 12.)

· In July 2023, Plaintiff checked into an Equinox facility six times. (UMF No. 16.)

· On or about November 29, 2023, Equinox refunded \$268 to Plaintiff, constituting the second complimentary month of membership for August 2023. (UMF No. 13.)

· In August 2023, Plaintiff checked into an Equinox facility 10 times. (UMF No. 17.)

· Plaintiff was not charged for September 2023 membership dues, constituting the third complimentary month of membership. (UMF No. 14.)

· In September 2023, Plaintiff checked into an Equinox facility eight times. (UMF No. 18.)

· On December 13, 2024, Plaintiff filed the Complaint in this matter, stemming from the May 19, 2023 exercise bike incident. (UMF No. 19.)

· As a result of Plaintiff's Complaint, Defendants incurred court costs of \$435. (UMF No. 20.)

Thus, Defendants have met their initial prima facie burdens of production and persuasion to demonstrate that they are entitled to summary judgment on their breach of contract cross-claim and that the release agreement bars Plaintiff's claims.

b. Plaintiff's Evidence

Plaintiff argues in opposition that Defendant did not actually provide Plaintiff three complimentary months as promised, because Plaintiff was automatically charged and had to request the refunds:

15.
Equinox refunded the June 2023 charges only after I objected, not automatically.

18.
Equinox did not promptly reverse the August charge. To my knowledge, it was not refunded until November 29, 2023—more than four months after the charge, and after the three-month complimentary period was over.

21. I understood "complimentary" to mean that I would not be charged during those three months—not that I would be charged and then required to seek refunds, in one instance more than four months later.

(Lavian Decl. ¶¶ 15, 18, 21.) But the release itself provides:

In consideration for three (3) months of complimentary membership at the current membership level, and for other good and valuable consideration received from Equinox Holdings, Inc. d/b/a

Equinox Fitness Clubs ("Equinox"), the sufficiency of which is hereby acknowledged, the undersigned, Farshad Lavian ("Releasor"), does hereby remise, release, acquit, satisfy, and forever discharge Equinox, together with its affiliates, subsidiaries, parent companies, and each of their present and former officers, directors, employees, shareholders, members, agents, assignors, representatives and the successors and assigns thereto (hereinafter referred to as "Releasees") of and from all manner of actions, causes of action, suits, debts, dues, sums of money, accounts, reckonings, bonds, bills, specialties, covenants, controversies, agreements, promises, variances, trespasses, damages, judgments, extents, executions, claims and demands whatsoever, in law or equity, which Releasor ever had, now has, or which Releasor or any personal representative, successor, heir or assign of said Releasor, hereafter can, shall or may have, against Releasees, for, upon, or by reason of any matter, cause or thing whatsoever from the beginning of the world to the day of the date of this General Release. This General Release may not be changed orally.

(Defendants' Exhibit F.) Moreover, Plaintiff does not deny that he used the gym facilities but was not ultimately charged for his gym membership for the months of June, July, and August 2023.

Therefore,
Plaintiff has not met his burden of production to create triable issues of material fact that Defendants did not furnish the consideration promised in the agreement.

CONCLUSION AND ORDER

Finding Defendants have met their initial prima facie burdens of production and persuasion to demonstrate that the General Release agreement bars Plaintiff's claims and that Plaintiff breached the General Release agreement by filing the instant lawsuit, and Plaintiff has not met his burden of production to create any triable issues of material fact that Defendants did not furnish the consideration of three months of complimentary gym membership to Plaintiff, the Court grants Defendants' motion for summary judgment.

Further, the Court will enter the proposed Order lodged on March 24, 2026 in conformity with the ruling, and orders Defendants to lodge a proposed Judgment on or before July 28, 2026. Objections to the proposed Judgment shall be filed and served on or before August 4, 2026.

Defendants shall provide notice of the Court's ruling and file the notice with a proof of service regarding the same.

DATED: July 21, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court